

ELIZABETH II



1974 CHAPTER xii

An Act to extend the time for completion of certain works by Crude Oil Terminals (Humber) Limited; and for other purposes. [9th July 1974]

WHEREAS by the Crude Oil Terminals (Humber) Act 1965 1965 c. xxviii. Crude Oil Terminals (Humber) Limited (hereinafter called “the Company”) were authorised to construct certain works in the parish of Tetney as therein described, subject to a provision that if the authorised works are not completed within ten years from the 1st October, 1965, the powers by the Act granted to the Company for making and completing the works or otherwise in relation thereto shall cease except as to so much thereof as is then completed:

And whereas in exercise of that authority the Company have constructed a substantial part of the works so authorised, and have been able until now to operate satisfactorily by utilising such part, which has catered for required capacity of the Company in the reception and shipment of goods transported by sea:

And whereas it is apparent that that capacity will increase in the next ten years to an extent which will or may prove the existing works to be inadequate for the purposes aforesaid:

And whereas it is accordingly expedient that the period of ten years, within which the works authorised by the said Act of 1965 are to be completed, should be extended as in this Act provided:

And whereas the objects of this Act cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short and
collective
titles.

1965 c. xxviii.

1.—(1) This Act may be cited as the Crude Oil Terminals (Humber) Act 1974.

(2) The Crude Oil Terminals (Humber) Act 1965, the Tetney Marine Terminal Revision Order 1969 and this Act may be cited together as the Crude Oil Terminals (Humber) Acts and Order 1965 to 1974.

Extension of
time for
completion
of works.

2. The period now limited by section 20 of the Crude Oil Terminals (Humber) Act 1965 for the completion of Works Nos. 1 to 4 and 12 to 14 authorised by section 14 of that Act, so far as those works have not already been constructed, is hereby extended until the 30th September, 1985.

For protection
of British
Transport
Docks
Board.

3. Section 40 of the Crude Oil Terminals (Humber) Act 1965 shall have effect as if there were inserted therein a new paragraph as follows:—

“(1A) The Company shall not—

(a) under the powers of section 15 (Subsidiary works) of this Act construct, execute or place any work any part of which is proposed to be on the foreshore or bed of the river; or

(b) make on the foreshore or bed of the river any renewal, enlargement or alteration under section 16 (Alteration and improvement of works) of this Act;

(except in so far as they renew in substantially the same form a work existing at the commencement of the Crude Oil Terminals (Humber) Act 1974) without the approval of the British Transport Docks Board, which approval may be withheld on grounds either of conservancy or of the safety of navigation but shall not be unreasonably withheld:

Provided that paragraph (5) of this section shall apply in respect of any such work, renewal, enlargement or alteration as it applies in respect of the plans and sections referred to therein.”.

Costs of Act.

4. The costs, charges and expenses of and incidental to the preparing, applying for, obtaining and passing of this Act, and otherwise in relation thereto, shall be paid by Crude Oil Terminals (Humber) Limited.

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